

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

GEORGE LOPEZ,

Plaintiffs,

-against-

SUMMONS WITH NOTICE

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER CONNOR CONVERY, SHIELD #
17471, TAX ID#: 958428, POLICE.
OFFICER N. VANDYKE, TAX
REGISTRY #956314 and police
officers whose names are yet
unknown,

INDEX NO.:

Defendants.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: November 8, 2018
Defendants' address: 1 Police Plaza
New York, NY


ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$1,000,000.00 with interest from July 22, 2018 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

GEORGE LOPEZ,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER CONNOR CONVERY, SHIELD #
17471, TAX ID#: 958428, POLICE
OFFICER N. VANDYKE, TAX
REGISTRY #956314 and police
officers whose names are yet
unknown,

INDEX NO.:

Defendants.

GEORGE LOPEZ, by his attorney, Elliot H. Fuld, complains of the
defendants and allege, upon information and belief as follows:

1. GEORGE LOPEZ was, at the times of the incident described in this
Complaint, a resident of the City and State of New York, County of
Bronx.

2. POLICE OFFICER CONNOR CONVERY, SHIELD # 17471, TAX ID#: 958428,
POLICE OFFICER N. VANDYKE, TAX REGISTRY #956314 and police officers
whose names are yet unknown were and at all times stated herein and
upon information and belief, is police officer with the New York City
Police Department with regards to the incidents described herein.

3. POLICE OFFICER CONNOR CONVERY, SHIELD # 17471, TAX ID#: 958428, POLICE OFFICER N. VANDYKE, TAX REGISTRY #956314 and police officers whose names are yet unknown were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, POLICE OFFICER CONNOR CONVERY, SHIELD # 17471, TAX ID#: 958428, POLICE OFFICER N. VANDYKE, TAX REGISTRY #956314 and police officers whose names were unknown, were employees of the New York City Police Department and were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about July 22, 2018, police officers forcibly seized and detained the Plaintiff herein in the area of Carpenter Avenue and East 233rd Street in Bronx County.

7. After detaining the Plaintiff, police officers arrested the Plaintiff without having any evidence that he had committed any crime of violation of law. When Plaintiff objected to the false arrest, police officers pulled Plaintiff out of his car. Subjected him to numerous body searches, searched his car and arrested him.

8. Police officers accused and charged Plaintiffs with possession a weapon (a pocket knife) which the officers incorrectly classified as a gravity knife under docket number 2018BX024954.

9. At the time of the arrest and detention those police officers who were present were aware or should have been aware that Plaintiff did not commit any crime. Upon information and belief, the officers stopped Plaintiff because he was a young male Hispanic operating a vehicle in Bronx County.

10. The arrest and detention of the Plaintiff by those officers and the filing of criminal charges was without probable cause and without basis in law or in fact. Contemporaneous with the arrest, the Defendants issued various bogus summonses to Plaintiff, such as a summons for not possessing a "first aid kit" in the car. That summons has already been dismissed.

11. As of the filing of this Complaint, Plaintiff has had to appear in court for the criminal charges with the charges being dismissed.

12. On or about August 24, 2018, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notices of Claim as required by the General Municipal Law and the City has held the statutory 50-h hearing on November 8, 2018.

13. That more than thirty (30) days have elapsed since the service of that Claim and the adjustment or payment thereof has been neglected or refused.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of July 22, 2018, imprisonment of Plaintiff that same day and the prosecution which is still continuing.

15. As a result of the false arrest of Plaintiff by defendants, Plaintiffs demands judgment against the Defendants and was damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiffs repeat all the allegations contained in paragraphs "1" through "15" inclusive as though more fully set forth herein.

17. As a result of Defendants' actions, Plaintiff was falsely imprisoned.

18. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

19. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiffs' release.

20. That as a result of Defendants' action, Plaintiffs was compelled to, *inter alia*, lose educational opportunities and suffer embarrassment and humiliation.

21. In view of the foregoing, Plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiffs repeat all the allegations contained in paragraphs "1" through "21" inclusive as though more fully set forth herein.

23. After Plaintiff's false arrest on July 22, 2108 and the malicious prosecution which followed, Plaintiff was required to make an appearance in Criminal Court and has made and will continue to make appearances in the summons part of the Bronx Criminal Court and the Department of Motor Vehicles.

24. That during the pendency of those charges, the Defendants were well aware that it did not appear that Plaintiffs had committed any crime or violation.

25. Irrespective of that, the Defendants continued to pursue criminal charges against Plaintiffs, seeking to have the Plaintiffs plead guilty to a lesser charge.

26. Plaintiff has refused to plead guilty.

27. The Defendants' prosecution of Plaintiffs was conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" and the various violations that said reckless disregard constituted malice.

28. In view of the foregoing, Plaintiffs has been damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

29. Plaintiffs repeat all the allegations contained in paragraphs "1" through "28" inclusive as though more fully set forth herein.

30. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

31. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

32. The Defendants have in the past made it a practice and policy

to harass, detain and seize young Hispanic and African-American males who act in a law-abiding manner solely because of their race and/or ethnicity.

33. The Defendants have in the past made it a practice to stop, detain and harass young Hispanic and African-American males without any justification or just cause.

34. The Defendants perform these unlawful seizures to provoke citizens such as Plaintiff and other similarly situated young male Hispanics and African Americans into protest over such unlawful seizures.

33. At the time of that unlawful and unjustified detention, the Defendants then aggravate the situation by claiming that citizens such as Plaintiff and other similarly situated young male Hispanics and African Americans are acting "disorderly" or "obstructing governmental administration" when in fact these citizens are simply exercising their constitutional rights by objecting to being unlawfully seized and manhandled by Defendants.

34. That at the time of the unlawful false arrest, false

imprisonment and malicious prosecution herein, Defendants had already made it a practice and continue to make it a practice and policy of their daily activities to randomly harass, stop, detain and seize young Hispanic and African-American males on the street and in their own apartment buildings.

35. That said discriminatory and race based actions by the Defendants do not occur in higher income areas populated and frequented by fewer young Hispanics and African American males.

32. As a result of the foregoing, the Plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$2,000,000.00; and
- b. On the Second Cause of Action, the sum of \$2,000,000.00; and
- c. On the Third Cause of Action, the sum of \$2,000,000.00; and
- d. On the Fourth Cause of Action, the sum of \$2,000,000.00, as well as attorneys' fees because of the civil rights violations; and For punitive damages in the amount of \$1,000,000.00.

Dated: November 8, 2018



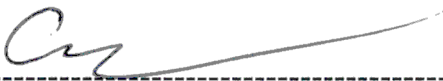
Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, being duly sworn, deposes and says:

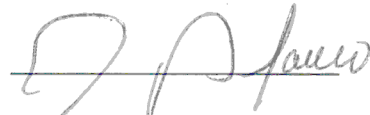
I am the Plaintiff herein, and I verify that I have reviewed all the statements contained in the attached Verified Complaint, all of which are either true or upon information and belief are true. I verify this Answer because Defendant is presently unable to come to my office.

Dated: November 8, 2017



ELLIOT H. FULD

Duly Sworn to this 8TH
day of November, 2017



ANA POLANCO
Notary Public, State of New York
Reg. No. 01PO6133973
Qualified in Bronx County
Commission Expires Sept. 19, 2021